

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS OCTOBER TERM, A.D. 2024

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON....ASSOCIATE JUSTICE

Prince D. Jegbadai and the Intestate Estate of Joe)
P. Jegbadai represented by and thru its Administrator)
Prince D. Jegbadai of Patient Shop, Montserrado)
County, Republic of Liberia Appellant)

Versus

APPEAL

The Liberia Bank for Development & Investment,)
represented by and thru its President/CEO or Authorized)
Officer of the City of Monrovia, LiberiaAppellee)

GROWING OUT OF THE CASE:

Prince D. Jegbadai and the Intestate Estate of Joe)
Q. Jegbadai represented by and thru its Administrator)
Prince D. Jegbadai of Patient Shop, Montserrado)
County, Republic of Liberiaappellant)

Versus

MOTION FOR RELIEF
FROM JUDGMENT

The Liberia Bank for Development & Investment,)
represented by and thru its President/CEO or Authorized)
Officer of the City of Monrovia, LiberiaRespondent)

Heard: November 19, 2024

Decided: February 17, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

The present appeal emanates from a final ruling of the Sixth Judicial Circuit, Civil Law court, Montserrado County, in a motion for Relief from Judgment filed on June 29, 2018 by the Intestate Estate of Joe Jegbadai, represented by and thru its Administrator Prince D. Jegbadai, the appellant herein, against the Liberia Bank for Development & Investment (LBDI), the appellee.

The trial records reveal that the appellee filed a petition for foreclosure of mortgage against the Barnersville Community Health Center, represented by its sole proprietress, Yvonne

Carley Jegbadai, who is also one of the children of Joe Jegbadai, whose Intestate Estate is the appellant herein. Hearing was had and a final ruling rendered in favor of the appellee on October 6, 2011; that while the final ruling of the trial court was in the process of being enforced, the appellant, on January 2, 2012, filed a seven (7) count petition for a writ of prohibition before Madam Justice Jamesetta Wolokolie, who was then presiding in Chambers for the October Term, 2011, predicated upon which petition, Madam Justice Wolokolie placed a stay order on the enforcement proceedings pending the outcome of the hearing on the Petition, and which order remained in force until May 16, 2012, although no hearing was had on the said petition. Subsequently, Mr. Justice Kabineh Ja'neh who was then presiding in Chambers for the March Term, 2012, ordered the lifting of the stay order issued by Madam Justice Wolokolie. However, on September 14, 2012, Mr. Justice Philip A. Z. Banks III, who had succeeded Mr. Justice Ja'neh in Chambers, placed another stay order on the proceedings, and same remained in full force until June 25, 2018, when Madam Justice Wolokolie, having succeeded Mr. Justice Banks III in Chambers for the March Term, 2018, declined to issue the writ and mandated the Civil Law Court to resume jurisdiction and proceed in keeping with law.

The records further reveal that on June 29, 2018, following the reading of the Mandate from Madam Justice Wolokolie in the trial court, the appellant through its administrator, filed a motion for relief from judgment, the judgment rendered in the foreclosure proceedings, and alleging *inter alia*, that he, the administrator of the Intestate Estate of Joe P. Jegbadai and his three sisters *viz.*: Yvonne Carley Jegbadai, Hawa Jegbadai and Agnes Jegbadai are joint tenants of the property subject of this litigation; that the said property was acquired by their father, Mr. Joe P. Jegbadai on July 4, 1974, through a Warranty deed issued from Mr. P. Blamon Jah to Joe P. Jegbadai and Children; that Mr. Jegbadai having died intestate on November 12, 2003, and by virtue of the inscription on the deed, "to Joe P. Jegbadai and Children" the property is jointly owned by the appellant and his three (3) sisters, and cannot be disposed of by any single sibling without the knowledge or consent of the other siblings; that as the administrator of the subject property was unaware that his sister, Yvonne Carley Jegbadai had, in 2008, secured a loan of US\$150,000.00 (One Hundred Fifty Thousand United States Dollars), from the appellee, the Liberia Bank for Development & Investment (LBDI) on January 20, 2008, using the property jointly owned by them as security for the said loan; that it was in the month of November, 2011, that he observed the presence of some employees from the appellee's Bank on the premises where he, the administrator also lives and informed him that the property containing two buildings, one four bedroom house

and a forty room storey building intended to be used as a clinic erected on the two (2) of land lots was mortgaged by his sister, Yvonne Carley Jegbadai, and that the Civil Law Court had rendered final ruling in a Foreclosure Proceeding against his sister; that the administrator and the rest of the joint tenants were not part of the loan agreement contracted by their sister Yvonne Carley Jegbadai with the Respondent Bank because they were not informed and neither did they sign any agreement nor consented to same; that he was advised by lawyers to proceed to the Civil Law Court to secure a photocopy of the case file for inspection by his lawyers; that to administrator's surprise, shock and dismay, the loan and mortgage agreements were discovered which proved that Yvonne Carley Jegbadai had indeed unilaterally mortgaged their property jointly owned property and had defaulted on the repayment of her loan thereby jeopardizing the interest of the intestate estate and thereby, the interests of he, the administrator and the rest of the joint owners without their knowledge, will and consent, which is illegal under the law; that the sheriff went on the property with notice of execution to expose the property to sale when the said property is a joint tenancy, jointly owned by all four (4) of the Jegbadai's children; and that Opinions of the Supreme Court are replete with the legal principle that no judgment shall be concluded against a person(s) who was not or never made a party to a suit, and that any judgment made in such regard is void ab initio and of no legal effect as to that person not made a party. Attached to the motion was a copy of the warranty deed for the property of their late father.

On July 11, 2018, the appellee, the Liberia Bank for Development & Investment (LBDI) filed its returns asserting among other things that the appellant not been a party to the main suit, cannot claim relief therefrom; that the Letters of Administration used by Ms. Carley Jegbadai to secure the loan was never revoked for any cause, thus she legally mortgaged the property to the appellee; and the Civil Procedure Law Chapter 41.7(3) is unequivocally clear regarding "Time for Motion", therefore the motion for relief from judgment will not lie.

The motion for relief from judgment was heard, and thereafter, on September 21, 2018, the trial Judge ruled against the appellant, relying on the Supreme Court Opinion, rendered on January 16, 2014, in the case: *Bentley International Corporation v. Republic of Liberia*, to which the counsel for the appellee noted exceptions and announced an appeal to the Supreme Court sitting in its October Term, A.D. 2018, on a seven (7) count bill of exceptions. We quote excerpts of the trial judge's ruling and the bill of exceptions, verbatim, respectively, to wit:

RULING

Pursuant to Chapter 41.7 of our Civil Procedure Code, the appellant herein, the defendant in the main suit, filed with this court a nine-count motion for relief of judgment, which was countered by the respondent, the petitioner in the main suit. As a correction to this ruling, the appellant in the motion for relief from judgment was not a party to the main suit, but rather is applying for relief from judgment entered in the main suit. Inasmuch as this court will love to delve into the merits of this matter, it is however expedient that the court searches the history of the matter to determine whether or not it possesses the legal competence to inquire therein. The judgment from which the relief from judgment is being sought was entered by our colleague of concurrent jurisdiction on the 6th day of October 2011.

Subsequently thereafter, the appellant herein filed with the Honorable Supreme Court for petition for a writ of prohibition against the respondent, growing out of the case which was finally adjudicated by our colleague. The Supreme Court after reviewing the facts in this matter at a conference, refused to issue the writ and mandated this court to resume jurisdiction and proceed in keeping with law.

After this Mandate from the Supreme Court was communicated to this court and when this court had the said mandate read, the appellant herein, on the 29th day of June, 2018, filed this motion for relief from judgment. The question is, and this question was raised by the respondent to this motion: whether or not this court possesses the legal competence to hear and determine this motion. This court relied on the Opinion of the Supreme Court, rendered on the 16th day of January, 2014, in the case Bentley International Corporation v. the Government of the Republic of Liberia. This matter was decided by the Supreme Court, relying on section 41.7 subsection 3. The said subsection provides that a motion, under section 41.7, shall be made within a reasonable time after judgment is entered. In the case just referred to, the Supreme Court gave a definition to what constitutes a reasonable time in the eye of the law. The Court, speaking through the Chief Justice, held that a period exceeding more than nine (9) months after the entry of a ruling cannot and should not be considered as reasonable time.

In the case before us, from the date of the rendition of the judgment to the date on which the initial motion for relief from judgment was filed by the appellant herein, exceeds the period of nine (9) months. More besides, the appellant herein, not being a party to the main suit, proceeded to the Supreme Court, applying thereto for a writ of prohibition, which the Supreme Court refused to issue, and they not being a party to the judgment, the court does not see how it can relieve them therefrom. The court hereby says that under the circumstances of this case, it cannot entertain the motion for relief from judgment.

Wherefore and in view of the foregoing, this court hereby ordered denied the prayer contained in the appellant's motion for relief from judgment and the judgment is hereby ordered upheld..."

"BILL OF EXCEPTIONS

AND NOW COMES appellant in the above entitled cause of action having excepted to Your Honor's Ruling/Final Judgment on September 21, 2018, rendered in said case, but which ruling/final Judgment was received on September 26, 2018, from which an announcement of an appeal was made, now present this Bill of Exceptions for Your Honor's approval in satisfaction of the second jurisdictional step for the perfection of appeal as follow:

1. That Your Honor committed prejudicial and reversible error when you denied appellant's Motion for Relief from Judgment growing out of the main case of Petition for Foreclosure of Mortgage to which appellant was not or never a party based on one of the grounds relied upon by Your Honor that said motion was not filed within reasonable time as contemplated by law, given that same was filed by appellants more than nine (9) months since the rendition of the final judgment in said foreclosure case of October 6, 2011, and using as reliance for Your Honor's decision/final judgment the case: *Bentley International Corporation v. Republic of Liberia*, Supreme Court Opinion, January 2014, rendered during the October 2013 Term of Court. That is to say, as regard to said error, the facts and circumstances in the cited case are not analogous to that of the instant case in several fundamental respects, and, hence, the reasonable time period as defined and applied in said cited case is not applicable to the instant case as indicated as follow:
 - a. Unlike the instant case in which appellants were not made a party to the main suit Bentley International Corporation was a party to the suit in which the said corporation was concluded by the judgment thereof.
 - b. Unlike the Bentley case wherein the Corporation sought a writ of error but with neither a stay order nor the alternative writ issued therefrom by the Supreme Court, in the instant case, upon the filing of a Petition for a Writ of Prohibition by appellants, an initial stay order was placed on the enforcement/execution of the judgment in the aforementioned main suit of foreclosure by the Supreme Court for about seven (7) months, thereby, by operation of law, suspending/pausing the running or counting of the statute of limitation in respect to "reasonable time" for the filing of the said motion for relief from judgment until at such time the said stay order was lifted, and a month thereafter said lifting of the stay order, appellants filed their motion for relief from judgment. Thus, subtracting the suspended period from the time the judgment was entered in the main suit of foreclosure to the time the said motion was interposed rationally means that appellants filed same in about three (3) months period, which under the circumstances, was timely and reasonable in time as contemplated by law as opposed to the nine (9) months period calculated and applied in the cited Bentley

International Corporation case; notwithstanding the fact that appellants only had actual knowledge of said judgment proceeded to the subject premises in an attempt to execute/enforce the said judgment; and

- c. Unlike the cited Bentley International Corporation case wherein there was neither a stay order nor an alternative writ issued on the lower court as aforementioned following the filing of the said Corporation's writ of error as the Honorable Supreme Court, thereby giving the Corporation the latitude to have filed its motion for relief from judgment before the Civil Law Court, in the instant case, appellants could not have legally and properly filed its motion for relief from judgment in the wake of the stay order on further proceedings at the lower court emanating from its petition for a writ of prohibition that was still pending undetermined before the Honorable Supreme Court as indicated, *supra*. Thus, the calculation and application of the reasonable time period in the Bentley case cannot legally be applied to the instant case. Hence, the appellants except to Your Honor's said erroneous ruling.
2. And also appellant contend and say that Your Honor committed prejudicial and reversible error when you ruled denying appellants' motion on the other ground that because appellants not being party to the main suit and/or the judgment thereof. appellants contend that under the law or the intent and spirit of the law, a person does not necessarily have to be a party to the main suit to be relieved from judgment that affects his/her rights or interest whether in part or in whole, if such person so affected made an application in that regard as in the instant case with appellants. This is premised on Article 20(a) of the 1986 Constitution of Liberia; Section 41.7 subsection 2(d) *Voidness of the judgment*, 1LCLR; and the legal principle expounded in many Opinions of the Honorable Supreme Court of Liberia that no one can be concluded by a judgment rendered in a suit to which he was not a party, and that a party cannot be bounded by a judgment without being allowed a day in court. For this erroneous and prejudicial judgment of Your Honor, appellant except.
3. appellants further excepted to Your Honor's final judgment and announced an appeal because your committed prejudicial and reversible error by denying appellants' motion for relief from judgment when you ruled that the matter in the main suit to which appellants are and were not parties thereto and as such, Your Honor refused to grant the said legally grounded motion. Your Honor is under the law duty bound to set aside any void and illegal judgment as in this case whether or not rendered by your colleague. Hence, appellants excepted to Your Honor's prejudicial and reversible error."

This Court has determined that there is one issue dispositive of the appeal, which is:

1. Whether or not the motion for relief from judgment was proper, given the facts and circumstances of this case?

The Civil Procedure Law Section 41.7 (2) defines a motion from relief from judgment as follows:

“Grounds. On motion and upon such terms as are just the court may relieve a party or his legal representative from a final judgment for the following reasons:

- a) Mistake, inadvertence, surprise, or excusable neglect;
- b) Newly discovered evidence which, if introduced at the trial, would probably have produced a different result and which by due diligence could not have been discovered in time to move for a new trial under the provisions of section 26.4 of this title;
- c) Fraud (whether intrinsic or extrinsic), misrepresentation, or other misconduct of an adversary party;
- d) Voidness of judgment; or
- e) Satisfaction, release, or discharge of the judgment or reversal or vacating of a prior judgment or order on which it is based, or in-equitableness in allowing prospective application of the judgment

- 1. A motion under this section shall be made within reasonable time after the judgment is entered.
- 2. A motion under this section does not affect the finality of a judgment or suspend its operation. This section does not limit the power of a court to entertain an independent action to relieve a party from a judgment or to grant relief to a defendant under section.”

Firstly, from the above-quoted provisions of the statute, a motion for relief from judgment should be filed within reasonable time after judgment is entered. In the instant case, the ruling of the trial judge was rendered October 6, 2011; on January 2, 2012, the appellants filed a seven (7) count petition for a writ of prohibition before Madam Justice Jamesetta Wolokolie, presiding in Chambers for the October Term, 2011, predicated upon which petition Madam Justice Wolokolie placed a stay order on the enforcement proceedings which remained in force until May 16, 2012, when Mr. Justice Kabineh Ja’neh who was then presiding in Chambers for the March Term, 2012, ordered the lifting of the stay order issued by Madam Justice Wolokolie; on September 14, 2012, Mr. Justice Philip A. Z. Banks placed another stay order on the proceedings, and same remained in full force until June 25, 2018, when the appellee filed a motion to dismiss the petition for the writ of prohibition; subsequently on June 29, 2018, following a period of more than six (6) years, the appellant then filed a motion for relief from judgment. Hence, we are inclined to agree with the trial judge that in consonance with the dictates of the statute, and as espoused in the case: *Bentley International Corporation v. The Government of the Republic of Liberia*, Supreme Court Opinion, October Term, A.D. 2013, a time period exceeding nine (9) months after the rendition of final judgment, as in the instant case, cannot be considered reasonable time for the purpose of filing a motion for relief from judgment and we so hold.

Secondly, the Civil Procedure Law Revised Code 1: 41.7 (1) (2) provide that a motion for relief from judgment relieves only a party or his legal representative to the main action, and the filing of said motion does not affect the finality of the judgment or suspension of its operation. In the instant case, the appellants not being parties to the main action of foreclosure of a mortgage, they lack standing to file a motion for relief from judgment, and even if they had standing, same would not have abated or suspended the judgment.

A further review of the trial records shows that Ms. Carley Jegbadai presented letters of administration from the Monthly and Probate Court for Montserrado County dated December 29, 2008, under the signature of Judge J. Vinton Holder to the Bank as the administrator of the Intestate Estate of Joe P. Jegbadai. The present administrator also holds letters of administration from the self-same monthly and probate court and the same Judge Holder, but dated June 5, 2008, prior to his sister's. This Court has held, a probate judge cannot issue a second letters of administration, where he/she had earlier issued letters of administration, as same is illegal and erroneous. Hence, noting that it was on the basis of letters of administration issued in favour of Madam Carley Jegbadai for the mortgage of the property, that the Bank granted her a loan amount of One Hundred Fifty Thousand United States Dollars (US\$150,000.00), and same not revoked, the appellee Bank cannot be held accountable for the act of Madam Jegbadai since she presented valid letters of administration. Also, the interpretation and argument by the appellant that the inscription on the deed, "to Joe P. Jegbadai and Children" created a joint tenancy, cannot be raised at the Civil Law Court in a motion for relief from judgment. We therefore hold, that if the Intestate Estate of Joe P. Jegbadai feels injured by the act of Ms. Carley Jegbadai and is of the view that she acted without the pale of the law by allegedly unauthorizedly binding the Estate to the mortgage agreement, when in essence she is not the proper administrator of the estate, the Intestate Estate of Joe P. Jegbadai is at liberty to file the appropriate legal action in a proper court to protect its interest but not by way of a motion for relief from judgment.

Before concluding this Opinion, it is worth noting that the appellant has argued that the succeeding judge of the Sixth Judicial Circuit, Civil Law Court, Montserrado County, should have rescinded the decision of his predecessor denying the execution of the petition for the foreclosure of mortgage; that his failure to do same constituted a reversible error. Assuming *arguendo* that the succeeding judge had the legal competence to rescind the decision of his predecessor of concurrent jurisdiction as the appellant has contended, the

appellant would still not have gotten the necessary relief sought having stated herein that a person not a party to a suit cannot properly file a motion for relief from judgment. This Court reiterates its decision entrenched in numerous Opinions, that, “no trial judge has the power to review, modify, rescind, and/or reverse the acts or any decision by a colleague of concurrent jurisdiction on any point already passed upon by him, however erroneous the said act of his colleague may be; said authority lies only with this Supreme Court; the Supreme Court has the authority to render whatever judgment the lower court should have rendered...” *The United Methodist Church and Consolidated African Trading Corporation v. Cooper et al*, 40 LLR 449, 459 (2001); *Emirates Trading Agency Company v. Global Import and Export Company*, 42 LLR 204, 212-213 (2004); *IN RE Judicial Inquiry against Judge Emery S. Paye*, Supreme Court Opinion, October Term, 2012.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the Six Judicial Circuit, Civil Law Court, Montserrado County denying the motion for relief from judgment is hereby affirmed for the reasons stated herein. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and enforce its final ruling of September 21, 2018. Costs are ruled against the appellant. AND IT IS HEREBY SO ORDERED.

Final Ruling Affirmed.

When this case was called for hearing, Counsellor Rodney Kuoh, of Jones & Associates Law Firm appeared for the appellant. Counsellor Lawrence Yeakula of Liberty Law Firm appeared for the appellee.